

Justification for Exception to Fair Opportunity

IAW.FAR 16.505(b)(2)(ii)(B)

1) Identification of the agency and the contracting activity

The General Services Administration, Public Building Services,
Region 3-Mid Atlantic Acquisition and Management Division

2) Nature and/or description of the action being approved

Award of a Purchase Order (GSA 1449) for purchase of commercial services.

3) A description of the supplies or services required to meet the agency's needs (including the estimated value)

SYNOPSIS: Perform surveying duties of the Federal Executive Institute in Charlottesville, VA to prepare the building for disposal. The North American Industry Classification System (NAICS) code for surveying and mapping services is 541370. MAGNITUDE OF PURCHASE ORDER: \$20,000 to \$40,000

4) Identification of the exception to fair opportunity

In accordance with FAR subpart 13.5; in accordance with 41 U.S.C.1901 or the authority of 41 U.S.C. 1903.

5) A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The contracting officer may request Other Than Certified Cost or Pricing Data to aide in their evaluation of an offeror's price proposal. No award will be made prior to the contracting officer determining the accepted price is fair and reasonable.

6) Any other facts supporting the justification

N/A.

7) A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

This requirement is a discrete project and no subsequent acquisitions will be made. This exemption to fair opportunity is IAW with section 1331 of Public Law 111-240 (15 U.S.C.644(r)).

8) Contracting Officer Statement

It is to the best of my knowledge that all statements and facts presented in this justification are accurate and complete.

9) Evidence that any supporting data that is the responsibility of technical or requirements personnel

The awardee of this PO was determined to have the technical capability and experience to perform surveying services prior to award of the PO. It has been determined that the scope of work of this requirement fits the definition of The North American Industry Classification System (NAICS) code for surveying and mapping services is 541370.

10) A written determination by the approving official that one of the circumstances in paragraphs (b)(2)(i)(A) through (E) and (G) of this section applies to the order.

N/A

11) Contracting Officer Certification:

I hereby certify that the above information is accurate and complete to the best of my knowledge.

Connor Eagan Date
Contracting Officer .